

		Williams's Original Motion for Reconsideration) was made with a sound basis and in good faith. It is based on new evidence undermining Huynh's claim of a miscommunication between him and his lawyers. And, even though such evidence, emails between the parties' counsel, existed at the time of the briefing on the Motion to Enter Dismissal, the circumstance warranting their consideration after the Court's July 8, 2025 Order was that because Huynh had essentially sprung on the parties and the Court at the last minute his belated argument of "miscommunication," it left Williams and his then-counsel little opportunity to fully rebut it with all the possible testimonial and documentary evidence." (Opp. at p. 9.) Although the motion was untimely and lacked merit, the Court cannot say it was completely frivolous or filed for purposes of delay or harassment under section 128.7. Defendant's counsel believed that filing a renewed nearly-identical motion was appropriate since the Court took the original, timely motion off calendar. Defendant raises a colorable argument that the "new evidence" was not presented at the initial hearing because Plaintiff raised new arguments after the opposition was filed. Therefore, the motion is denied.
10	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746 Motion for Terminating Sanctions	Plaintiffs All Inclusive Insurance Services, LLC and Isidro Miramontes' motion for terminating sanctions or, in the alternative, issue and evidentiary sanctions against Defendant Aaron J. Green is DENIED without prejudice. "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiffs have shown Defendant violated the Court's 4-29-26 Order compelling Defendant to (1) serve responses to Plaintiffs' Motion to Compel Responses to Special Interrogatories, within 21-days; (2) serve responses to Plaintiffs' Motion to Compel Responses to Request for Production of Documents, within 21-days; (3) to appear for his deposition within 21-days; and (4) pay monetary sanctions of \$6,518 within 30 days. (Harrison Decl., ¶¶ 19-24, Ex. 1.) Notice of the ruling was served by the court clerk by mail on Defendant. (ROA 347.) However, to date,

		Plaintiffs have not received any responses in compliance with the 4-29-26 Order. The moving party must not only show that there was violation of the court's order, but that such violation was willful. (Doppes, supra, 174 Cal.App.4th at 992.) Plaintiffs have not shown that the violation of the Court's Order was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Plaintiffs' request for terminating sanctions is DENIED. As to issue and evidentiary sanctions, pursuant to California Rules of Court, Rule 3.1345(a)(7), a separate statement is required for a motion for issue or evidentiary sanctions. Plaintiffs have not filed a separate statement in support of their request for issue and evidentiary sanctions and therefore failed to comply with Rule 3.1345(a)(7). Accordingly, Plaintiffs' request for issue and evidentiary sanctions is DENIED. Defendant is ORDERED to comply with the Court's 4-29-26 Order within 20-days' notice of this ruling. The Court warns Defendant that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions. Plaintiffs to give notice.
12	Ramirez vs. Woodlake Village Community Association 2025-01456495 Motion for Summary Judgment and or Adjudication Review Hearings	Defendant Farmers Insurance Exchange motion for summary judgment, or in the alternative for summary adjudication, in its favor and against Plaintiff Adriana Ramirez, on all causes of action alleged in Plaintiff's First Amended Complaint is CONTINUED to November 30, 2026, at 1:45 p.m. Plaintiff opposes the Motion but, in the alternative, seeks a continuance to obtain additional discovery. Code of Civil Procedure section 437c, subdivision (h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due."